

SENATE No. 363

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act increasing access to emergency diabetes management medication.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 363

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 363) of Barry R. Finegold for legislation relative to the administration of diabetes medication. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 279 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act increasing access to emergency diabetes management medication.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 54B of chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting at the end thereof the following paragraph:-

3 Notwithstanding any general or special law to the contrary, the department of public
4 health shall promulgate regulations governing the emergency administration of glucagon, in
5 accordance with the student's Diabetes Medical Management Plan or health provider's orders, to
6 allow for the administration of glucagon by trained members of the school staff when a nurse is
7 not available and the student exhibits symptoms of severe hypoglycemia; provided, however,
8 that the parent or legal guardian of the student has submitted in writing permission for such
9 emergency treatment to be rendered; provided further, that a member of the school staff who, in
10 good faith, administers glucagon to a student who exhibits symptoms of severe hypoglycemia

11 shall not be held liable, except in cases of gross negligence or intentional misconduct, in a suit
12 for damages as a result of their acts or omissions, nor shall such person be subject to any
13 disciplinary action for such emergency aid; provided further, that a trained member of the school
14 staff who is not a nurse and administers glucagon shall not be considered to be practicing
15 nursing; and provided further, that a member of the school staff trained to administer glucagon
16 shall volunteer to be trained.

17 SECTION 2. Within 180 days of enactment, the department of public health shall,
18 pursuant to section 54B of chapter 71 of the General Laws, promulgate regulations for the
19 emergency administration of glucagon.